Workspace 'Running Notes' in 'Labour Law '

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xiv) In India, for the object of determining if wages can be paid to workers while on strike, it has to be seen whether the strike is legal and justified. If it is, then wages will be paid to the striking workers.
xv) T.S Kelawala Case — Landmark case; Syndicate Bank Case — Overruled Kelawala Case.
xvi) Stated that she is going to share PPT of some cases, and that Unit 3 has ended.

DATE — 28/9/26
i) Began with taking class presentations, on Units that are coming for the Mid Sem exam.
ii) Stated — "Who constitutes family, must be known, for questions on Child Labour in India."
iii) Began with Unit 4 — stated to be the most important unit for the Mid Sem exam. (Repeated this multiple times.)
iv) Stated a very important case — Workmen of Dimakuchi Tea Estate v. Management of Dimakuchi Tea Estate (1958) — The principal objects of the ID Act was analysed by the SC in this case.
v) Stated to visit the Studio Lab (aito.upes.ac.in) — all notes are available there (Although those are not similar to the ones that the Professor actually gave in her lectures, i.e., the ones which are the LT notes).

DATE — 29/9/26
i) Began with stating the distinction between Employee and Worker.
ii) Stated that Employee is defined under Section 2(L) of the IR Code; Worker is defined under Section 2(zr).
iii) Stated that "Nature of Duties" is one of the headings under which Worker is distinguished from Employee — a) Manual b) Unskilled and Skilled c) Technical d) Operational e) Clerical f) Supervisory (Ceiling of Rupees 15000, if going above, then employee).
iv) Stated — for "Skilled", Training and Experience are both needed.
v) Now stating the classes "Nature of Duties" for Employee — a) Managerial b) Administrative — stated that these classes are excluded for Workers.
vi) Stated that — "In India, whoever is working in the Print Media, are to be classified under Workers. For eg — working Journalists".
vii) Also stated that — "Salesmen, like Medical representatives, are also to be classified under Workers."
viii) Also stated that — "Any one who is working in the Armed forces, and also Policemen, are not to be considered as Workers."
ix) Stated that Semi Skilled Duties are not falling under Worker, but under Employee.
x) Stated that — "Semi Skilled persons are those who have only training but not experience. Once experience comes in, then they can be considered as Skilled."
xi) Stated that IR Code, 2020 only applies to Workers, and not Employees.
xii) Stated — 3 Tests for determining if there exists an Employer Employee Relationship — a) Control or Supervision Test b) Dominant Nature of work Test c) Substance and not label Test.

DATE — 30/9/26
i) Began by stating that Professor has uploaded some Reading materials on LMS, which would be helpful in our preparation for the Mid Sem exam.
ii) Stated important topics — In Unit 1 — history — focus more on after independence, ILO — In Unit 2 — Registration Criteria, Immunities, Section 16 and Section 17, Unfair Labour Practices — In Unit 3 — Recognition, Section 14 and Section 57, Collective Bargaining, Section 62 and Section 63 for Strikes. Write with enumerations, state provisions properly, write case laws, where applicable.

DATE — 12/10/26
i) Began by putting forth question to class — Why is "employee" the wider term?
ii) States that "Employer" is the person who hires someone — this person is responsible for providing all the benefits given under the law.
iii) Began with Section 2(m) of the IR Code, 2020.
iv) Stated the term "Occupier" of a factory — the one taking decisions for the factory.
v) Stated that a "Contractor" is also an employer.
vi) Started distinguishing between "Principal Employer" and "Employer".
vii) Stated that for Company running an industry, the Directors would be the Employers; in Partnership, the Partners would be the Employers.
viii) Stated the term — "Appropriate Government" — being either Centre or State. This term is the correct term to use, to describe the Centre or State Government; and not just mentioning Centre or State Government.
ix) Began with Section 2(b).
x) Began with the Concept of Fixed Term Employment.
xi) Stated that for End Sem — Unit 4 would have a weightage of at least 50 marks, out of 100 marks.
xii) Stated that Section 2 (o).
xiii) Going through the entirety of the above mentioned xii) Section, in detail.



DATE — 13/10/26
i) Began with Industry.
ii) Stated above i) to be a very important topic.
iii) Stated that the history or evolution of the definition of Industry is important to know.
iv) For above iii) — Three phases — a) Pre 1963 cases b) Between 1963 and 1978 c) Post 1978.
v) For 1st phase — D.N. Banerji v. P.R. Mukherji (1953) — Held that an Undertaking run by the municipality constituted an industry, because of the expression of "undertaking"; State of Bombay v. Hospital Mazdoor Sabha (1960) — Held that a Government run hospital would fall within the ambit of an industry, also gave the definition of "Undertaking" — this was the case from which the Bangalore Water Supply case took the triple test for Undertaking, also stated that "Industry" is any 1. Systematic activity 2. Carried on by co-operation 3. For the production, supply or distribution of goods or services; Corporation of the city of Nagpur v. it's Employees and Ors. (1960) — Held that the definition of industry does not include the regal (related to administration of justice, law and order) functions. Also stated that non-regal services would be included under the definition of industry; Ahmedabad Textile Industry's Research Association v. State of Bombay (1961) — Court held that the research institution would be considered under the definition of Industry, applied the Hospital Mazdoor Sabha test.
vi) For 2nd phase — National Union of Commercial Employees v. M.R. Meher, Industrial Tribunal Bombay (1962) — Also known as Solicitor's firm case. Question was whether a law firm is an industry? Held that a law firm is not an industry, on account of the employer-employee relationship having no direct or essential nexus with each other. Professor stated that Bangalore Water Supply case overruled this case; University of Delhi v. Ram Nath (1963) — Court very narrowly interpreted "Industry"; Madras Gymkhana Club Employees Union v. Management of Gymkhana Club (1967); & Cricket Club of India v. Bombay Labour Union (1969) — Both held that Clubs would not be considered under Industry; Management of Safdarjung Hospital v. Kuldip Singh Sethi (1970) — Overruled Hospital Mazdoor Sabha case, held that Government hospitals would not be considered under Industry, also stated for the first time that "Profit motive" is relevant for coming under the definition of Industry.

DATE — 14/10/26
i) Began with a revision of 13/10/26.
ii) Began with 3rd phase — Stated to be an extremely important case — Bangalore Water Supply and Sewerage Board v. A. Rajappa (1978) (7 judge bench) — Overruled decisions given in Safdarjung case, M.R. Meher case, University of Delhi case, Gymkhana Case. Laid down the triple test to determine whether an establishment is an industry or not — 1. Whether there is any systemic activity. 2. Organised by co-operation between employer and employee. 3. For the production and/or distribution of goods and services calculated to satisfy human wants and wishes (not spiritual or religious but inclusive of material things or services geared to celestial bliss i.e. making, on a large scale or prasad or food), prima facie, there is an 'industry' in that enterprise. Professor stated that, in this case, it was also said that there must be a plurality of workers. The Issues in the case — a) Are, establishments run without profit, industries? b) Are charitable institutions industries? c) Do clubs or other organisations whose emphasis is not on profit making but fellowship and self service are industry? d) Could lawyer's chamber or chartered accountant's office, a doctor's clinic or other liberal professions' occupation or calling be designated as industry? e) Would university or college or school or research institute be called as an industry? f) Do domestic services become industries?
iii) Stated — Section 2(p) — comparing it with the above mentioned ii) judgement, to show that the entire triple test has been used as the definition of Industry in the Act; however, while the judgement considered charitable institutions to be an industry in accordance with the test, the Act in 2(p)(ii)(i) did not consider such to be an industry if such establishments are wholly or substantially engaged in any charitable, social or philanthropic service.
iv) Stated that — Absence of profit motive or gainful objective is irrelevant, be the venture in the public, joint, private or other sector. Also, the true focus is functional and the decisive test is the nature of the activity with special emphasis on employer-employee relations. Additionally, if the organisation is a trade or business it does not cease to be one because of philanthropy animating the undertaking. Furthermore, the Dominant Nature Test is to be applied.

Workspace 'Running Notes' in 'Labour Law '

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DATE — 19/10/26
i) Began with showing marked Mid Sem Answer Sheets.
ii) Took photos, will upload (She added 2 marks more to the final marks present in the sheet; therefore my final marks scored is 75 and not 73) — Professor's observations — a) Requires elaboration in Section C Answers. b) Requires more accuracy and elaboration with respect to the Legal sections. c) She does not like the "connecting" I have done with the page dedicated to the "facts put in order and enumerated as A), B), C)…" She likes the "facts put in order" thing, but does not like that she has to "connect" by looking at the "facts put in order" page. My own observations align with Professor's a) and b) — I usually wrote in the order of Section A, B, C. However, I understood, the day before Company Law exam, that the order that I would be required to follow, in writing the answers, would be Section C, B, A. The simple reason for this is the quantity expected with respect to the marks required for providing such quantity, also taking into consideration the tendency to write more when we see we have time. Therefore, if I begin with writing Section A answers first, I have lot of time left, and I put more quantity in a Section which does not require such. Therefore, at the end when I reach Section C answers, on account of the time being less, I am not able to put the expected quantity (obviously also taking into consideration the tendency above mentioned). Thus, beginning should be done with Section C, then Section B would follow, and finally Section A.

DATE — 21/10/26
i) Began with a revision of 14/10/26 class.
ii) Stated with reference to the class of 14/10/26, specifically the Bangalore Water Supply Case — 3 types of charitable institutions which would either be considered as an Industry or Not an Industry (stated that if the triple test is being followed, it would fall under Industry, no matter whether profit is happening or not) — a) Those, which are having profit, but are donating majority of profit, nevertheless would be considered as an Industry. b) Those, having no profit, but donating everything they are producing (depends upon triple test being followed). c) Those, in which the workers are working voluntarily, for eg — NGOs, and if they are not falling under a worker-employer relationship, it would NOT be an Industry.
iii) Stated that — If question comes in the exam, if University or College or School would be considered as an Industry, it would be considered as an Industry (provided of course, if the followance of triple test showcases such to be falling under the class of Industry).
iv) Stated — Amendment of 1982 (not notified till date) where Parliament inserted Section 2(j) — showcases the tussle between the judiciary and the legislature.
v) Stated — Coir Board Ernakulam Kerala State v. Indira Devai P.S (2000) — 2 judge bench decided that reconsideration of the Bangalore Water Supply should be done; referred matter to larger bench. Large bench stated that Bangalore Water Supply Case has no problems.
vi) Stated — State of U.P. v. Jai Bir Singh (2005) — The Court — 1st argument was — that there wasn't any majority in the Bangalore Water Supply Case, even though it was 5:2, still within the 5 judges, they were not completely aligned. 2nd argument was — small scale industries, which should not be considered as Industry, are being considered as such which is affecting business there. 3rd argument was — Bangalore Water Supply Case was extremely worker centric, there was no balance. Therefore, reconsideration of the Bangalore Water Supply Case should be done.
vii) Stated — 2026 judgement dealing with the reconsideration of the Bangalore Water Supply Case (You have to find out the name, Professor stated the judgement to be very important).
viii) Stated — Tirumala Tirupathi Devasthanam v. Commissioner of Labour — Can temples be considered as Industry?
ix) Stated, with reference to what the vii) Case stated — Section 2(p) to be the current definition of Industry, which is to be followed.
x) Stated — Indian Institute of Islamic Studies v. Delhi Administration — Just because it is a minority institution, it would be an Industry (of course, provided the triple test showcases it to be falling under such class).
xi) Constantly emphasising the Bangalore Water Supply Case, triple test, the contradiction with respect to charitable institutions made by the legislature in the IR Code, 2020.

DATE — 27/10/26
i) Began with Definition and Concept of Industrial Dispute.
ii) Stated — Section 2(q) of the IR Code, 2020 — going through it thoroughly.
iii) Stated the difference between Retrenchment and Dismissal — Retrenchment is when the employer terminates the worker, without any fault of the workers, on account of the employer's circumstances. Dismissal is termination due to the worker's fault.
iv) Emphasising upon the Express Inclusion under Section 2(q).
v) Stated that — question may come in the exam — In which cases Individual dispute will be an industrial dispute? — Answer would be — only if the dispute is related to termination or non-employment; state Section 2(q) and emphasise upon the Express Inclusion under Section 2(q). Other matters will not be considered as Individual dispute, but Individual Grievance.
vi) Stated case — Western India Match Co. v. Workers Union (1970) — If any single worker has any matter related to employment and it is not being considered as Industrial dispute, in those cases if the single workers gets the support of the Trade Union then it can become an Industrial Dispute.
vii) Began with Industrial Disputes Resolution.
viii) Stated that Chapter 6 and Chapter 7 engage with above vii).
ix) Stated — Adjudicatory Mechanism under the IR Code, 2020 — a) Internal — Bipartite Forums — i) Section 3 (Works Committee) ii) Section 4 (Grievance Redressal Committee). b) External — Adjudicatory Forums — i) Sections 42 and 49 (Voluntary Arbitration) ii) Sections 46, 47, 49 (National Industrial Tribunal — dealing with matters related to national interest) iii) Sections 43, 49 (Conciliation Officers) iv) Sections 44, 47, 49 (Industrial Tribunal).

DATE — 28/10/26
i) Began with the revision of 27/10/26 class.
ii) Stated — Section 3 — going through it thoroughly.
iii) With reference to above ii), emphasised upon the minimum number of workers being that of 100 workers.
iv) Stated that Section 3(3) represents the Duties of the Works Committee.
v) Stated — Northbrook Jute Co. v. Their Workmen (1960) — The duty of work committee couldn't extend more than making comments or recommendations and to endeavour to compose any material difference of opinion in respect of such matters; but the function cannot go beyond the recommendations given.
vi) Stated another case — Bangalore Raje v. Union of India (1993) — The workers' representation under Section 3 of the IR Code, 2020, must not be less than the employers' representation.
vii) Stated that the recommendations given by the Works Committee are not binding.
viii) Stated for Grievance Redressal Committee (Section 4) — Committee for redressing individual grievances — going through the section thoroughly.
ix) Stated that question may come in the exam — Difference between Works Committee and Grievance Redressal Committee.
x) Stated that more than 1 Grievance Redressal Committee may be constituted in an industry.
xi) Stated that representation in the Grievance Redressal Committee would be equal, with respect to workers' representation and employers' representation.
xii) Show a slide with respect to Individual Dispute: Route (Two Categories) — took photo (will upload).
xiii) Stated — Section 4(5) with respect to Grievance Redressal Committee.
xiv) Stated — Section 4(6) with respect to Grievance Redressal Committee and Limitation period.
xv) Stated — Section 4(7) — stated to be very important.
xvi) Stated — Section 4(8).
xvii) Stated — Grievance Redressal Committee's decision is binding and appealable with respect to the slide photo of Route.

DATE — 30/10/26
i) Began by stating that on 18th November, Class Test (Subjective) of 30 marks is going to be held (Syllabus is Unit 4).
ii) Began with Section 42 — going through it thoroughly.
iii) Distinguished between Arbitration Agreement and Arbitration Award.
iv) Stated that Awards, in IR Code 2020, are understood to be Decisions given by either Arbitrator or Industrial Tribunal.
v) Began with Section 43.
vi) Stated that Section 42, Section 43, and Section 53 are important (going through all these of sections thoroughly).
vii) Stated Section 53 also for "When conciliation proceeding initiated?".